
PRO1801087 IN THE MATTER OF DONN R. SCHOENMANN

1. Motion for Leave to File Amended Answer Asserting Additional Affirmative Defenses, filed by E. Lynn Schoenmann on 6/16/26.
2. Motion for Judgment on the (Amended) Pleadings Dismissing the Amended Petition with Prejudice, filed by Respondent E. Lynn Schoenmann on 7/9/26.

Ruling. As a preliminary matter, the Court takes judicial notice of the court records requested by Petitioners. (Evid. Code, § 452, subd. (c) and 453.)

The Court concludes that it has authority to rule on Respondent's Motion for Leave to File Amended Answer Asserting Additional Affirmative Defenses and grants this motion.

Having granted Respondent's Motion for Leave to File Amended Answer Asserting Additional Affirmative Defenses and having considered Respondent's Motion for Judgment on the Pleadings, in light of the Amended Answer, the Court denies the Motion for Judgment on the Pleadings for the following reasons. The Court may "take judicial notice of the *existence* of judicial opinions and court documents, along with the truth of the results reached" in this order. (*People v. Harbolt* (1997) 61 Cal.App.4th 123, 126.) This Court took judicial notice of the Bankruptcy Court's Order Abstaining from Deciding Consolidated Adversary Proceedings, Dismissing Them and Granting Relief from Stay. (Req. Jud. Notice, Exh. O.) This Order granted "full relief from the automatic stay...so that the California Superior Court for the County of Marin...may proceed to adjudicate all remaining issues in this matter without regard to this bankruptcy case." The Court takes judicial notice that the Bankruptcy Court abstained from deciding certain issues that are to be adjudicated by the Marin County Superior Court. The identification of these remaining issues is a factual determination.

PRO2003455 IN RE THE PATRICIA CORNELL TRUST DATED NOVEMBER 16, 1993, TRUST OF

Verified Petition of Trustee Ann Cornell to Declare Patricia Cornell a Vexatious Litigant and for Prefiling Order, filed by Ann Cornell on 4/22/26.

Ruling. The Verified Petition of Trustee Ann Cornell to Declare Patricia Cornell a Vexatious Litigant and for Prefiling Order, filed by Ann Cornell on 4/22/26 is **denied without prejudice**.

PLEASE NOTE: Probate cases that are designated as confidential by California law will not be posted online. For tentative rulings in those matters, please contact the judicial secretary at [\(415\) 444-7260](tel:4154447260).

Judge James T. Chou

Department C

10:00 Calendar

PR0001088 IN THE MATTER OF EDWARD LOUIS DeROSIS

1. Status Conference - Filing of Final Inventory and Appraisal
2. Status Conference – Filing Petition for Final Distribution or Report of Status of Administration

Ruling. Personal representative Kim Schwarcz and attorney Kevin M. Baldwin are **ordered to appear**.

PR0001142 IN THE MATTER OF FRANKLIN D. RAINWATER

Status Conference – Filing Petition for Final Distribution or Report of Status of Administration

Ruling. Personal representative James Rainwater and attorney Ralph Kokka are **ordered to appear**.

PR0001328 IN THE MATTER OF JEANNE C. MAHON

1. Status Conference – Filing Petition for Final Distribution or Report of Status of Administration
2. Status Conference – Filing Final Inventory and Appraisal
3. Order to Show Cause – Why the Personal Representative Shouldn't Be Removed and Why Attorney Mr. Fenton and Mr. Parenti Shouldn't Be Sanctioned in the amount of \$149 for each of the following: (1) Failure to appear on 8/20/26 and (2) Failure to File Final Inventory and Appraisal.

Ruling. Personal representative Christian Parenti and attorney Joseph F. Fenton are **ordered to appear**.

PR0001333 IN THE MATTER OF EVA CAPRILE

Status Conference – Filing Petition for Final Distribution or Report of Status of Administration

Ruling. Personal representative Alice Fishler and attorney Steven Klamm are **ordered to appear**.

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